Case Brief – Meridian Chemical Holdings Ltd v (1) Julian Ashworth-Hale (2) Rosalind Ashworth-Hale

Case Brief | Document ID: **MERIDIAN-BRIEF-001** | Procedural position as at 1 September 2026

Reference	LCIA Reference No. 235841
Forum	Arbitration under the LCIA Arbitration Rules 2020 (SPA Clause 22.2); sole arbitrator, Ms Ingrid Callaway KC, appointed by the LCIA Court on 14 February 2025
Seat and language	London, England; English
Governing law	Law of England and Wales (SPA Clause 22.1); curial law: Arbitration Act 1996, as amended by the Arbitration Act 2025
Confidentiality	Confidential between the parties under Article 30 of the LCIA Rules

Nature of the dispute

A post-completion dispute under a Share Purchase Agreement dated 14 March 2024 ("the SPA"), completed on 2 May 2024, by which the Respondents ("the Sellers") sold Hale Specialty Distribution Ltd ("the Target") to the Claimant ("the Buyer") for £14,000,000 paid at Completion plus deferred consideration of up to £4,500,000 ("the Earn-Out") calculated by reference to the Target's EBITDA for the period ending 31 March 2026.

The Claimant claims (i) damages of approximately £2,140,000 for breach of Warranty 7.3 (Material Contracts), concerning the non-renewal of the Target's supply contract with Northbridge Coatings Ltd; and (ii) against the First Respondent only, a declaration and damages of approximately £420,000 for breach of the non-compete covenant in Clause 9. The Respondents deny both claims and counterclaim for the Earn-Out (approximately £2,175,000 on their figures), disputing the Claimant's calculation of Actual EBITDA under Clause 6.4(b). Interest and costs are claimed on both sides.

Parties and representation

Party	Role	Representation
Meridian Chemical Holdings Ltd (co. no. 09215467), 14 Copthall Avenue, London EC2R 7BP	Claimant; Buyer. Key individuals: Priya Nandakumar (Group CFO); Elliott Vance (M&A Director)	Hartley Voss LLP (Fiona Cazenove-Marsh, Partner); counsel Dominic Aitchison-Reeve, Gainsborough Chambers
(1) Julian Ashworth-Hale	First Respondent; Seller (62%); former CEO of the Target	Camborne Fitch LLP (Nathaniel Okonkwo-Price, Partner); counsel Beatrice Lindqvist-Hume
(2) Rosalind Ashworth-Hale	Second Respondent; Seller (38%); former Finance Director of the Target	As above

Non-parties referred to in the documents

Name	Description
Hale Specialty Distribution Ltd (co. no. 06773190)	The Target; now a wholly-owned subsidiary of the Claimant
Northbridge Coatings Ltd	Former customer of the Target
Brenner Coatings Ltd	Former customer of the Target
Ashworth Specialty Solutions Ltd (co. no. 15987421)	Company incorporated by Julian Ashworth-Hale in January 2026
Marcus Oduya; Denise Farrow	Head of Sales and Operations Director of the Target respectively
Gregory Fenwick-Symes FCA; Charlotte Ibbotson ACA	Quantum experts instructed by the Claimant and the Respondents respectively

Chronology

Date	Event	Document
2009	Julian Ashworth-Hale founds the Target	—
1 Oct 2021	Target enters Supply Agreement with Northbridge Coatings Ltd	CLM-EMAIL-002

Date	Event	Document
14 Mar 2024	SPA signed; Disclosure Letter delivered	CLM-CONTRACT-001; CLM-DISC-001
18 Apr 2024	Northbridge Coatings Ltd gives Rosalind Ashworth-Hale written notice that it will not renew the Supply Agreement	CLM-EMAIL-002
19 Apr 2024	Rosalind Ashworth-Hale forwards the notice internally to Marcus Oduya (cc Julian Ashworth-Hale)	CLM-EMAIL-001
22 Apr 2024	Pre-completion management update meeting (Elliott Vance by telephone)	RES-MEET-001
25 Apr 2024	Telephone call between Julian Ashworth-Hale and Elliott Vance	CLM-WIT-001; RES-WIT-001
26 Apr 2024	Elliott Vance emails Priya Nandakumar about the call	CLM-EMAIL-003
2 May 2024	Completion of the SPA	CLM-CONTRACT-001
Early Jul 2024	Claimant learns of the Northbridge non-renewal from the Target's sales team	CLM-WIT-001
12 Sep 2024	Claimant's Notice of Warranty Claim sent by email and post	CLM-CORR-001
3 Oct 2024	Respondents' response letter	RES-CORR-001
18 Dec 2024	Request for Arbitration filed with the LCIA	Procedural record
15 Jan 2025	Respondents file their Response	Procedural record
14 Feb 2025	Sole arbitrator appointed by the LCIA Court	Procedural record
10 Mar 2025	Procedural Order No. 1 (timetable)	Procedural record
30 Apr 2025	Statement of Case served	Procedural record
30 Jun 2025	Statement of Defence and Counterclaim served	Procedural record
31 Jul 2025	Reply and Defence to Counterclaim served	Procedural record
15 Oct 2025	Document production (Redfern Schedule) concludes	Procedural record
28 Nov 2025	Factual witness statements exchanged	CLM-WIT-001; RES-WIT-001
10 Jan 2026	Julian Ashworth-Hale incorporates Ashworth Specialty Solutions Ltd	CLM-CH-001
30 Jan 2026	First round of expert reports exchanged	CLM-EXP-001; RES-EXP-001
14 Feb 2026	Ashworth Specialty Solutions Ltd emails Brenner Coatings Ltd	CLM-EMAIL-004
31 Mar 2026	End of the Earn-Out Period	CLM-CONTRACT-001
2 May 2026	End of the 24-month Restricted Period under Clause 9	CLM-CONTRACT-001

Procedural position as at 1 September 2026

Statements of case, document production, factual witness statements and the first round of expert reports are complete. Under Procedural Order No. 1, a joint meeting of the quantum experts and a Joint Memorandum are due by 30 September 2026; a Pre-Hearing Review is listed for 6 October 2026; and a five-day Merits Hearing is listed in London from 16 November 2026. No award, interim or final, has been made, and no admissions of liability have been made by either side. No application for summary disposal has been made.